



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

October 30, 2014

CHAN

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Steven Schmitt**
Tax Registry No. 935711
Queens Court Section
Disciplinary Case No. 2012-7794

The above named member of the service appeared before Assistant Deputy Commissioner Amy J. Porter on December 2, 2013 and December 13, 2013, and was charged with the following:

DISCIPLINARY CASE NO. 2012-7794

1. Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about May 13, 2012, at a location known to this Department, in Queens County, was discourteous to New York City Police Sergeant Michelle Kemp, in that said Police Officer had the newspaper opened in front of him during roll call and failed to acknowledge said Sergeant when she was attempting to give said Police Officer his assignment for his tour. *(As amended)*

P.G. 203-09, Page 1, Paragraph 2

**PUBLIC CONTACT- GENERAL,
GENERAL REGULATIONS**

2. Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 5, 2012, at a location known to this Department, in Queens County, was discourteous to New York City Police Sergeant Joseph Fastaia, in that said Police Officer snatched a complaint report from said Sergeant's hand and when said Sergeant attempted to instruct said Officer on the cleanliness of said Officer's uniform, said Officer replied, "Yeah, yeah you and every other supervisor can" in a loud and harsh tone.

P.G. 203-09, Page 1, Paragraph 2

**PUBLIC CONTACT- GENERAL,
GENERAL REGULATIONS**

3. Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 5, 2012, at a location known to this Department, in Queens County, failed to maintain a clean and neat appearance.

INTERIM ORDER No. 7, Page 1, Paragraph 5

**REVISION TO PATROL GUIDE
206-03, VIOLATIONS SUBJECT
TO COMMAND DISCIPLINE**

POLICE OFFICER STEVEN SCHMITT

DISCIPLINARY CASE NO. 2012-7794

4. Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 14, 2012, at a location known to this Department, in Queens County, was discourteous to New York City Police Lieutenant Chungyoon Huh, in that said Police Officer threatened to leave his Command before completing the arrest processing of an individual known to the Department.

P.G. 203-09, Page 1, Paragraph 2

**PUBLIC CONTACT- GENERAL,
GENERAL REGULATIONS**

5. Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 14, 2012, at a location known to this Department, in Queens County, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in that said Officer referred to a supervisor, known to the Department, as a "f-cking retard."

P.G. 203-10, Page 1, Paragraph 5

**PUBLIC CONTACT-
PROHIBITED CONDUCT,
GENERAL REGULATIONS**

6. Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 14, 2012, at a location known to this Department, in Queens County, upon taking DNA evidence requiring analysis at the Police Laboratory into custody, failed to prepare a Property Clerk's Invoice (PD521-141), as required.

P.G. 218-09, Page 1, Paragraph 2(a)(5)

**EVIDENCE OTHER THAN
CONTROLLED SUBSTANCES/
MARIJUANA AND FIREARMS/
BALLISTICS EVIDENCE
REQUIRING POLICE
LABORATORY ANALYSIS**

7. Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 14, 2012, at a location known to this Department, in Queens County, failed to report to the Desk Officer when said Officer was leaving the stationhouse.

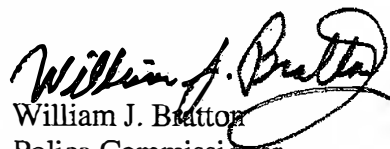
P.G. 202-21, Page 1, Paragraph 4

**POLICE OFFICER – DUTIES
AND RESPONSIBILITIES**

In a Memorandum dated May 13, 2014, Assistant Deputy Commissioner Amy J. Porter found the Respondent Guilty of Specification Nos. 1, 2, 4, 5 and 7, and found Respondent Not Guilty of Specification Nos. 3 and 6 in Disciplinary Case No. 2012-7794. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

I have considered the totality of issues and circumstances in this matter and deem that a greater penalty is warranted. Therefore, the Respondent is to forfeit thirty (30)

vacation days and be placed on one (1) year dismissal probation, as a disciplinary penalty.


William J. Bratton
Police Commissioner



POLICE DEPARTMENT

May 13, 2014

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Steven Schmitt
Tax Registry No. 935711
Queens Court Section
Disciplinary Case No. 2012-7794

The above-named member of the Department appeared before me on December 2, 2013 and December 13, 2013, charged with the following:

1. Said Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about May 13, 2012, at a location known to this Department, in Queens County, was discourteous to New York City Police Sergeant Michelle Kemp, in that said Police Officer had the newspaper opened in front of him during roll call and failed to acknowledge said Sergeant when she was attempting to give said Police Officer his assignment for his tour. (*As amended*)

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL,
GENERAL REGULATIONS

2. Said Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 5, 2012, at a location known to this Department, in Queens County, was discourteous to New York City Police Sergeant Joseph Fastaia, in that said Police Officer snatched a complaint report from said Sergeant's hand and when said Sergeant attempted to instruct said Officer on the cleanliness of said Officer's uniform, said Officer replied, "Yeah, yeah you and every other supervisor can" in a loud and harsh tone.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL,
GENERAL REGULATIONS

3. Said Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 5, 2012, at a location known to this Department, in Queens County, failed to maintain a clean and neat appearance.

INTERIM ORDER #7, Page 1, Paragraph 5 REVISION TO PATROL GUIDE
206-03, VIOLATIONS SUBJECT
TO COMMAND DISCIPLINE

4. Said Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 14, 2012, at a location known to this Department, in Queens County, was discourteous to New York City Police Lieutenant Chungyoon Huh, in that said Police Officer threatened to leave his Command before completing the arrest processing of an individual known to the Department.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT GENERAL,
GENERAL REGULATIONS

5. Said Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 14, 2012, at a location known to this Department, in Queens County, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in that said Officer referred to a supervisor, known to the Department, as a “f-cking retard.”

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT PROHIBITED
CONDUCT, GENERAL REGULATIONS

6. Said Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 14, 2012, at a location known to this Department, in Queens County, upon taking DNA evidence requiring analysis at the Police Laboratory into custody, failed to prepare a Property Clerk’s Invoice (PD521-141), as required.

P.G. 218-09, Page 1, Paragraph 2(a)(5) EVIDENCE OTHER THAN
CONTROLLED SUBSTANCES/
MARIJUANA AND FIREARMS/
BALLISTICS EVIDENCE
REQUIRING POLICE LABORATORY
ANALYSIS

7. Said Police Officer Steven Schmitt, assigned to the 109th Precinct, while on-duty, on or about July 14, 2012, at a location known to this Department, in Queens County, failed to report to the Desk Officer when said Officer was leaving the stationhouse.

P.G. 202-21, Page 1, Paragraph 4 – POLICE OFFICER DUTIES AND
RESPONSIBILITIES

The Department was represented by Jamie Moran, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specification Nos. 1, 2, 4, 5 and 7. Respondent is found Not Guilty of Specification Nos. 3 and 6.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Michelle Kemp, Police Officer Benjamin Colobong, Sergeant Joseph Fastaia, and Lieutenant Chungyoon Huh as witnesses.

Sergeant Michelle Kemp

Kemp, a 22-and-a-half-year member of the Department, is currently assigned to the 109 Precinct. She was Respondent's direct supervisor approximately twice a week during a period of more than six months. When she issued Respondent his assignment at roll call on May 13, 2012 she noticed that he did not write it down. She explained that police officers are supposed to note their assignments in their Activity Logs. After giving out assignments, Kemp inspected the officers for vests and flashlights. She then instructed the officers to sit down while she reviewed training memoranda. She saw that

Respondent reached under his chair, pulled out a newspaper, and began reading it. Kemp called Respondent's name from a distance of approximately ten feet, but Respondent did not acknowledge her. Respondent responded only when Kemp called his name a second time. Kemp told him that it was unacceptable for him to be reading a newspaper during roll call. She then asked him to step outside of the muster room and stand at attention until roll call was over. After roll call, Kemp informed Respondent that she would be issuing him a Command Discipline (CD) for reading the paper.

On cross-examination, Kemp testified that because sector assignments vary from day to day, an officer would not know his assignment until she reads it at roll call. After conducting the equipment check, Kemp reviewed with the officers various legal and precinct memos. She did not talk to the officers about the Police Organization Providing Peer Assistance (POPPA), an organization for which she was a volunteer.

On redirect examination, Kemp testified there were POPPA posters hung in every Department facility, and POPPA volunteers gave lectures at the Firearms and Tactics Section and at the Police Academy. Although she did not recall speaking about POPPA on May 13, she has spoken about POPPA at other roll calls. In March or April of 2012, Kemp spoke about POPPA during roll call because two members of the service had recently committed suicide. She wanted the officers in her squad to know that POPPA and other programs were available to them if they were dealing with issues and wanted to talk to somebody. She explained, "I just do it as a supervisor concerned about the members who work for me. I want them to be mentally, spiritually, and emotionally prepared to be able to go out and help people that we . . . interact with. . . . If they are not healthy themselves, then they can't help the public." During her POPPA presentation,

Respondent abruptly yelled out "I called POPPA and they didn't do anything for me."

Kemp told Respondent that his outburst was inappropriate and that they could discuss the matter privately after roll call.

On recross-examination, Kemp testified that she did not direct officers to one particular organization. She just wanted the officers to know that POPPA and other counseling programs were available to them if they needed assistance. The Department intranet has information on the various counseling programs. In May 2012 there were four POPPA posters posted in the 109 Precinct station house. Kemp is not a licensed social worker or counselor.

Police Officer Benjamin Colobong

Colobong, a ten-year member of the Department, is currently assigned to the 109 Precinct. He works as the borough lab run officer, which means that he is responsible for transporting evidence from nine precincts to the Department laboratory. He explained that officers from the other precincts bring evidence to him at the 109 Precinct station house. After inspecting the evidence and attached paperwork, he drives it to the lab, which is located 30 to 40 minutes away.

Colobong knew Respondent from work but very rarely had interaction with him. While at the laboratory front desk on July 14, 2012, Colobong saw Respondent enter the building with blood evidence. Colobong noticed that the "blood kit" Respondent was carrying did not have the proper paperwork, such as a complaint report, request for lab form, property clerk's invoice, or transmittal form. When Colobong informed Respondent that he would have to return to the 109 Precinct to get the paperwork,

Respondent became upset and yelled, "Are you kidding me [?]" Respondent then left the building and drove away. Before leaving the lab that day, Colobong called the 109 Precinct desk officer, Lieutenant Chungyoon Huh, and told her about Respondent not having the proper paperwork.

Respondent was still upset when Colobong returned to the command. Respondent was loud, looked stressed, and yelled a little that he could not believe it was necessary to voucher the blood kit. While in the 124 Room, Colobong offered to assist Respondent with the vouchering of the blood kit. The 124 Room was approximately 42 feet from where the desk officer sat. While Colobong invoiced the item, Respondent left the 124 Room, but Colobong was still able to hear Respondent state aloud that the "supervisor's a retard." Colobong did not know who else was present to hear Respondent's remark. It was Colobong who completed the paperwork for the blood kit.

On cross-examination, Colobong testified that 30 to 60 minutes passed between the time he saw Respondent at the lab and the time he saw him back at the station house. None of the necessary paperwork had yet been completed. Colobong did not recall Respondent saying that he got no guidance from the desk officer. Nor did he recall seeing Respondent talking on his cell phone. Respondent was not talking to anyone in particular when he yelled that he could not believe it was necessary to voucher the blood kit.

When questioned by the Court, Colobong agreed that Respondent, upon learning that he had to return to the station house to prepare paperwork for the blood kit, became frustrated. Respondent yelled, turned around, and walked out of the laboratory building.

On redirect examination, Colobong testified that Respondent was outside the 124 Room when he made the comment about his supervisor being "a retard." Because Colobong was still in the room, he was unable to see Respondent's specific location. Colobong did not know who Respondent was talking to.

Sergeant Joseph Fastaia

Fastaia, a nine-and-a-half-year member of the Department, has been assigned to the 109 Precinct since June 2011. While assigned as desk officer on July 5, 2012, he met with Respondent at the desk to go over his quarterly review. On the review, Fastaia gave Respondent two points for report taking, but Respondent believed that he deserved three. While two points represented standard performance, three points was the highest score possible and represented superb performance. After discussing the matter, Respondent signed off on the report.

Toward the end of tour that day, Respondent brought in a complaint report for a major crime. Respondent dropped the report off at the desk and started to walk away but Fastaia called him back. Fastaia reviewed the report in Respondent's presence and noticed that a phone number was missing. He then told him, "You're missing a phone number. This is why you're a two [on your quarterly review rating.]" At that point, Respondent snatched the complaint report out of Fastaia's hands, filled in the missing information, and handed it back. Fastaia signed the report and gave it to Respondent, instructing Respondent to bring the document to the 124 Room for computer entry. As Respondent walked away from the desk he mumbled something Fastaia could not hear.

The 124 Room was located 10 or 20 feet away from the desk. As Respondent left the room, Fastaia noticed that there were stains on Respondent's uniform jacket and shirt. Fastaia described the uniform as being "not up to standard...protocol." Fastaia told Respondent that he would be issued a CD if he wore the same uniform the next day. As Respondent walked toward the stairwell, he responded to Fastaia by waving his hand in front of the desk and stating, "Yeah, yeah, yeah, you and every other supervisor can." Fastaia found this to be discourteous, so he brought Respondent into the executive officer's office and reprimanded him for his actions. Respondent told Fastaia that he was not walking away from him and was not being discourteous.

While assigned as patrol supervisor, Fastaia responded at approximately 11:00 p.m. on July 13, 2012 to a car accident at the intersection of College Point Boulevard and 40 Road. Upon detecting that the driver had alcohol on his breath, Fastaia summoned Respondent to the scene and assigned him to process the arrest. Fastaia instructed Respondent to wait with the driver at the hospital until the Highway Unit could collect a blood sample. Respondent did not ask Fastaia for guidance.

Fastaia explained that he tells all officers at roll call that he is available to help if they are ever in need of assistance. The officers have his phone number and can also raise him over the radio. Officers are supposed to pay attention to their assignments at roll call, and it is recommended that they write their assignments down.

On cross-examination, Fastaia testified that he might speak with officers at roll call about their off-duty conduct, but he would not talk about his personal beliefs. The supervisor who conducted roll call on July 5, 2012 should have inspected the officers for cleanliness. Fastaia did not speak with that supervisor. According to Fastaia,

Respondent was known for having a dirty uniform. Though Fastaia had brought this to Respondent's attention on plenty of occasions, he had never before issued Respondent a CD or placed him in the minor violations log for having a dirty uniform. Respondent's uniform was even dirtier than usual on July 5, though Fastaia did not take a picture of it or bring it to anybody else's attention. Fastaia's feelings were not hurt when Respondent walked away from him. To his recollection, there were no civilians in the area at the time. Fastaia has been a sergeant for two-and-a-half years. Respondent is one of only two people to whom he has issued a CD.

Fastaia conceded that his uniform shoes were a little scuffed up. He explained that "when you're working in the street, sometimes you do forget to polish your shoes." He agreed that officers also get dirty sometimes while working on the street. According to Fastaia, officers who get dirty should return to their commands to change their uniforms because an officer who is "squared away" gives off a sense of stability to the public.

Fastaia explained that on July 13, 2012 he assigned the arrest of the intoxicated driver to Respondent instead of another officer at the scene because he "wanted to make sure [Respondent's] arrest activity was up to par with everybody else" in the squad and the platoon. Although Fastaia's operator had made fewer arrests than Respondent that month, Fastaia assigned the arrest to Respondent because his operator had more seniority.

Fastaia was at the desk when he spoke to Respondent about the quarterly review and stained uniform on July 5, 2012. Although Fastaia has a loud voice, he did not yell at Respondent or intend to embarrass him in public. When Respondent snatched the complaint report out of Fastaia's hand, Fastaia did not sustain any injury.

On redirect examination, Fastaia testified that Respondent's uniform was already dirty when they discussed the quarterly review at approximately 7:00 p.m. on July 5, 2012. Fastaia did not mention the uniform at that point, but the uniform was even dirtier by the time he next saw Respondent toward the end of tour. He issued Respondent a CD for being discourteous to a supervisor. He specified the discourtesy as Respondent turning his back on him, walking away, waving his hands, and stating, "Yeah, yeah, yeah, you and every other supervisor can."

Lieutenant Chungyoon Huh

Huh, a 15-and-a-half year member of the Department, is currently assigned to the 109 Precinct. She was working as the first platoon desk officer on July 14, 2012, when Respondent entered the command in a "foul mood." Huh explained that Respondent was walking around and cursing. She could hear him tell other officers that he got stuck with an arrest to which he should not have been assigned. Huh heard Respondent state several times, "My supervisor is [a] fucking retard." Respondent was referring to Fastaia, who had already left for the day. Huh told Respondent, "Watch your mouth."

Respondent had entered the station house carrying a blood kit, which contained a blood sample from an intoxicated hospitalized prisoner. Respondent did not know how to voucher the blood kit, and he asked other officers what to do with it. Huh advised Respondent to use a Department computer to look up the vouchering instructions in the *Patrol Guide*. She also told him that he would have to go to the lab when he finished preparing the evidence paperwork. Respondent should have given the paperwork to Huh

for review before going to the laboratory. Respondent neglected to do this and went to the lab without getting Huh's permission.

At one point later in the tour, Huh received a telephone call from Colobong at the lab. Colobong told her, "Schmitt is here, he's making quite a scene without [a] voucher. . . the sergeant is pretty upset, and he wants to give him a CD or he wants to EDP him because he's going nuts here." This was the first Huh learned of Respondent being at the lab. She did not know how he got there. When Respondent returned to the 109 Precinct station house, Huh asked him why he took the blood kit to the lab without the proper paperwork. Respondent told Huh that he did not know how to voucher the kit. Huh responded that he should wait for Colobong to return from the lab and that Colobong would be able to voucher the evidence for him. Respondent was still in a foul mood during this period, cursing and talking about Fastaia. Colobong vouchered the blood kit upon his return from the lab.

After Colobong vouchered the evidence, Respondent asked Huh several times to go home, telling Huh that he needed to bring his car to his wife. Because Respondent had not yet finished processing the arrest, Huh did not give him permission to leave. Huh suggested that Respondent's wife call a car service, but Respondent just shook his head and repeated four or five times that he needed to go home. At one point, Respondent told Huh, "I don't care, give me a CD, I'm leaving." Huh responded, "If you leave this building now, it is not a CD, it's going to be a suspension." To this, Respondent replied, "Fine, I'm staying, I'm filing [a] grievance against you." As a result of this interaction, Huh gave Respondent a Schedule "A" CD. This was one of only two CDs that Huh has issued during the course of her career.

On cross-examination, Huh testified that Respondent referred to Fastia several times as a “fucking retard.” One of those times was during a telephone call between Respondent and his wife. During the call, Respondent was walking in front of the desk area, and Huh was sitting about three feet away. When asked if the blood sample could not have been vouchered within 24 hours, Huh indicated that barring an “unforeseen situation,” “[we] do it immediately.”

On redirect examination, Huh confirmed that on-duty officers are not allowed to leave the precinct without her permission.

Respondent's Case

Respondent testified in his own behalf.

Respondent

Respondent, a ten-year member of the Department, is currently assigned to the Chief of Department's Office. Respondent once called POPPA with a problem he was experiencing, but POPPA was not responsive. When he later heard Kemp talking to people about POPPA, he expressed his dissatisfaction with the organization. This occurred prior to May 13, 2012.

Respondent was reading the newspaper before roll call on May 13, 2012. He did not close the paper after Kemp entered the room. Respondent was not reading the newspaper while Kemp gave out assignments to the squad. After giving out the assignments, Kemp started talking about POPPA again. At that point, Respondent stopped really paying attention to her. Kemp approached Respondent and instructed him

to stand in the hallway at attention and wait for her. Respondent complied with these instructions without saying anything. When roll call ended five or six minutes later, Kemp yelled at Respondent, telling him he was disrespectful and not doing a good job.

The sergeant who conducted roll call on July 5, 2012 did not say anything to Respondent about his uniform. At about 7:00 p.m. that day, Fastaia gave Respondent his quarterly review. Because he received two points in the category of report taking, Respondent asked Fastaia if he had ever actually read one of his reports. Fastaia admitted to Respondent that he never read one of the reports and explained that he gave everybody two points for report taking. Respondent responded to Fastaia, "You're supposed to read my reports. . . . I'm prideful about my reports. . . . I think I deserve better than an average rating." This conversation took place at the desk. According to Respondent, this was the only time that Fastaia gave an evaluation in a public area of the station house. Fastaia did not say anything about Respondent's uniform during the conversation. Respondent resumed patrol.

At the end of tour that day, Respondent showed Fastaia a burglary report he had taken. Fastaia pointed out to Respondent that a contact telephone number was missing from the report. Respondent had the phone number written in his Activity Log, and he added the number to the report. Respondent had placed his equipment bag on a bench right next to the desk. While standing there waiting for Fastaia to review the report, Respondent started to fiddle with his bag in preparation for end of tour. Fastaia yelled, "Where are you going?" Respondent replied in what was probably an exasperated tone that he was not going anywhere. Two lieutenants who were at the end of the desk area started laughing at Fastaia. Respondent believed that Fastaia felt embarrassed because

the other supervisors were laughing at him. At that point, Fastaia changed the topic of conversation to Respondent's appearance, telling him that his uniform was dirty.

Fastaia summoned Respondent from another sector to the scene of a car accident on July 14, 2012. When he arrived at the scene there were already eight other officers present. Even though Respondent had informed Fastaia that he had family obligations, Fastaia ordered him to take the arrest of the intoxicated driver who had already been removed to the hospital. Respondent went to the hospital and waited for the Highway Unit to take a blood sample from the driver. When Highway Unit officers came, they advised Respondent that he would have to take the blood sample to the lab. Respondent then returned to the command, where he told Huh that he had never dealt with a blood kit before and asked her what to do with it. Huh told him that she did not know. At that point, Respondent told Huh that at the direction of the Highway Unit he was going to have to take the blood sample to the lab. Huh replied, "Fine." Respondent went to the 124 Room and spent about 45 minutes preparing the complaint and arrest reports for the case. When he finished the reports, Huh was away from the desk. Respondent asked officers in the area where Huh went, but nobody knew. There was no other supervisor working at the desk, so he told the officers to tell Huh when she returned that he was taking a Department car to the lab. He then went behind the desk, took the keys for a car, and drove to the lab.

Upon arriving at the lab, Respondent saw Colobong and was informed that the blood kit would not be accepted without first being vouchered. This made Respondent so upset that he might have kicked a wall. He had no interaction with a supervisor while at the lab.

When Respondent returned to the command, he was given additional evidence to voucher. At that point, he explained to Huh that his wife's car was in the shop and he needed to drive her to the hospital. Huh replied that he would not be able to leave and that when he joined the Department he should have known that "things like this could happen." Respondent conceded that he threatened to leave work, explaining to Huh that he had to go because his wife had medical problems and he needed to get her to an appointment at the hospital. Respondent ended up staying at work until all the property was vouchered, and he called his wife to inform her of the situation. While on the phone with his wife he probably made several "very awful comments" about Fastaia. He explained that he did not care for Fastaia, but his comments were made for only his wife to hear.

On cross-examination, Respondent explained that he stood up at the start of roll call on May 13, 2012, but Kemp allowed the officers to sit down once she finished giving out assignments. He proceeded to sit at the table where he had left the open newspaper. He reiterated that he was not paying attention to what Kemp was saying about POPPA, but he was not ignoring what was going on around him. When Kemp called his name, he responded. It was at previous roll calls that he expressed his dissatisfaction with POPPA. He conceded that an officer should not have a newspaper opened in front of him during roll call.

Respondent testified that his uniform was probably a little soiled on July 5, 2012 because he had just spent the entire tour on patrol, which is a "hands on kind of job." It was possible that he had barbecue sauce and stains on his shirt because he was often too busy to take a proper meal break and just grabbed food on the go. He conceded that at

one point Fastaia told him that he could give him a CD, and he (Respondent) replied, "Yes, you and everybody else." He explained that he made this remark because he had had numerous problems while assigned to the 109 Precinct and that during his time there he received CDs from several supervisors. He received more CDs than anybody else at the command, and he spoke with his union representative about bringing a complaint about the matter. Respondent never made a formal complaint because the union representative advised against it, and he feared that complaining would only exacerbate the situation.

On redirect examination, Respondent testified that he had never before vouchered blood or DNA samples.

FINDINGS AND ANALYSIS

Specification No. 1 deals with a single incident on May 13, 2012. Specification Nos. 2 and 3 stem from an incident on July 5, 2012. Specification Nos. 4, 5, 6 and 7 are charges which stem from events on the night of July 14, 2012.

Specification No. 1

Specification No. 1 alleges that Respondent, on May 13, 2012, in Queens County, was discourteous to Sergeant Michelle Kemp when, during roll call, he had the newspaper opened in front of him and failed to acknowledge the sergeant when she was attempting to give him his assignment for his tour.

Sergeant Kemp testified that while she was conducting roll call and issuing assignments on May 13, 2012, she saw that Respondent was not writing his assignment.

After she told everyone to take a seat and reviewed training memoranda, she saw Respondent pull out a newspaper from under his chair, spread the newspaper on his desk and read it. From ten feet away the sergeant called Respondent's name, but Respondent did not answer her. After she called his name a second time, he responded.

The testimonies from the sergeant and Respondent coincide here. Although Respondent claimed that he did not read the newspaper while Kemp gave out assignments, he admitted that he did not bother to close or put away the newspaper during roll call. He also admitted that after the sergeant gave him his assignment and started talking "about other things," he "didn't really pay attention." Thus, Respondent would not have heard the sergeant when she called out his name the first time.

While the testimonies from both Respondent and Kemp indicated that Respondent failed to acknowledge the sergeant after she gave him his assignment, all officers are generally expected to acknowledge their superiors when their name is called during the entire roll call.

Based on the Respondent's own admissions which corroborate the sergeant's testimony, Respondent is found Guilty of Specification No. 1.

Specification No. 2

Specification No. 2 alleges that Respondent on July 5, 2012, in Queens County was discourteous to Sergeant Joseph Fastaia when Respondent snatched a complaint report from the sergeant's hand and when the sergeant attempted to instruct Respondent on the cleanliness of his uniform, Respondent replied, "Yeah, yeah you and every other supervisor can" in a loud and harsh tone.

While assigned as a desk officer on July 5, 2012, Fastaia met with Respondent at the desk to go over his quarterly review. Fastaia testified that he gave Respondent two points for report taking, but Respondent believed that he deserved three. While two points represented standard performance, three points was the highest score possible and represented superb performance.

Toward the end of tour, Respondent left a complaint report for a major crime at the desk. Fastaia reviewed the report and noticed that a phone number was missing. He told Respondent, "You're missing a phone number. This is why you're a two [on your quarterly review rating]." At that point, Respondent snatched the complaint report out of Fastaia's hands. Respondent then filled in the missing information and handed it back.

As Respondent left the room, Fastaia noticed that there were stains on Respondent's uniform jacket and shirt. This meant that the uniform was "not up to standard...protocol." Fastaia told Respondent that he would be issued a CD if he wore the same uniform the next day. As he walked toward the stairwell, Respondent responded to Fastaia by waving his hand in front of the desk and stating, "Yeah, yeah, yeah, you and every other supervisor can."

Respondent admitted that, when Sergeant Fastaia told him that he could give Respondent a command discipline, he responded to Fastaia, "Yes, you and everybody else." Respondent did not testify about whether he did or did not snatch the report out of his sergeant's hands. He neither admitted nor denied this. However, he did testify that he was upset that he did not get a better than an average rating on his quarterly review and that he added the missing phone number to the complaint report. The evidence

throughout the trial demonstrated that Respondent was unhappy with and frustrated by directions from his supervisors. Fastaia's unchallenged testimony is credible.

Therefore, Respondent is found Guilty of Specification No. 2.

Specification No. 3

Specification No. 3 alleges that Respondent, while on-duty on July 5, 2012 in Queens County, failed to maintain a clean and neat appearance.

Since Fastaia did not conduct roll call, he did not observe the condition of Respondent's uniform then. According to Respondent, the sergeant who conducted roll call on July 5, 2012 did not say anything to Respondent about his uniform.

Although Fastaia testified that Respondent was "known to have a dirty uniform" and that he brought this to Respondent's attention on many occasions, he never issued Respondent a CD or placed him in the minor violations log for his appearance.

While Fastaia indicated that Respondent may have been wearing a dirty uniform at different times during his tour, Fastaia gave no specific description of how the uniform was dirty.

Fastaia saw that, at the end of Respondent's tour, Respondent had stains on his jacket and shirt. Respondent conceded that, because he did not have enough time for a meal break and had to grab food on the go for that tour, he may have had barbecue sauce and stains on his shirt. The sergeant warned Respondent that if the next day he wore the same dirty uniform, Fastaia would issue Respondent a CD.

However, Fastaia did not issue Respondent a CD. If Fastaia felt it was appropriate to issue a CD, he should have done so then. Also, the testimony indicated it

might have been unreasonable to issue a CD at the end of Respondent's tour of duty for street patrol.

Therefore, Respondent is found Not Guilty of Specification No. 3.

Specification Nos. 4, 5, 6 and 7 all stem from a night on July 14, 2012 when Sergeant Fastaia summoned Respondent from another sector to the scene of a car accident. The sergeant assigned Respondent to take the arrest of the intoxicated driver who had already been removed to the hospital. Respondent was not happy that he was assigned this arrest towards the end of his tour because he had already told Fastaia that he had "family obligations in the morning" and there were already eight other officers present when Respondent arrived at the scene. He had to go to the hospital to sit with the suspect and wait for the Highway Unit to arrive to take the suspect's blood. After the Highway Unit came and after waiting for the precinct to send someone to relieve him, Respondent went back to his command. He told Lieutenant Chungyoon Huh that he had never dealt with a blood kit before and asked her what to do with it. He claimed the lieutenant said she did not know. After completing the arrest paperwork he took a patrol car to the lab.

When Respondent arrived at the lab, he was told the lab could not accept the blood in the vial as it was and that he needed to voucher it. This meant he had to return to the precinct. Respondent admitted that he was "very upset." He did not recall if he kicked the wall, but said, "I might have."

When he returned to the 109 Precinct, Respondent was given other evidence, which was property discovered in the car, to voucher. He told the lieutenant that he had

to leave, but she told him he could not. Respondent called his wife to tell her he was stuck at work. Police Officer Benjamin Colobong, the borough lab run officer, helped Respondent voucher the DNA for the blood sample and all the property was vouchered by 5:00 a.m.

Specification No. 4

Specification No. 4 alleges that Respondent, while on-duty, on July 14, 2012, in Queens County, was discourteous to Lieutenant Huh when he threatened to leave his Command before completing the processing of an arrest.

Huh was the assigned desk officer on July 14, 2012. She testified credibly that, after the blood sample evidence was vouchered, Respondent asked her several times if he could go home. He told Huh that he needed to bring his car to his wife. Because Respondent had not yet finished processing the arrest, Huh did not give him permission to leave. Huh suggested that Respondent's wife call a car service, but Respondent just shook his head and repeated "four or five times" that he needed to go home. At one point, Respondent told Huh, "I don't care, give me a CD, I'm leaving." Huh told him, "If you leave this building now, it is not a CD, it's going to be a suspension." To this, Respondent replied, "Fine, I'm staying, I'm filing [a] grievance against you."

Respondent corroborated that he told Huh that he had to leave work because he needed to drive his wife to an appointment at the hospital [REDACTED] [REDACTED] Respondent admitted, "I threatened that I had to leave because I had to get her there."

Meanwhile, as Huh indicated, it was vital that this processing be expedited because Respondent was handling DNA evidence.

Accordingly, Respondent is found Guilty of Specification No. 4.

Specification No. 5

Specification No. 5 alleges that Respondent, while on-duty on July 14, 2012 in Queens County, referred to his supervisor as a “f-cking retard”, and in so doing, engaged in conduct prejudicial to the good order, efficiency and discipline of the Department.

Respondent called his wife to tell her he could not leave. While he was on the phone with her, he said that he probably made several “very awful comments” about Fastaia. He explained that he did not care for Fastaia, but his comments were made for only his wife to hear.

Huh testified that she was working as the first platoon desk officer on July 14, 2012, when Respondent entered the command in a “foul mood,” walking around and cursing. She could hear him tell other officers that his supervisor stuck him with an arrest which he should not have been given. Huh heard Respondent state several times, “My supervisor is [a] fucking retard.” She testified that he made this comment several times throughout the night. The supervisor to whom Respondent was referring was Fastaia, who had already left for the day. Huh told Respondent, “Watch your mouth.”

Officer Colobong testified that when Respondent was outside the 124 room, he could hear Respondent saying that his “supervisor’s a retard.” Colobong also testified that Respondent was agitated and yelling.

Based on the credible testimonies of Huh and Colobong and Respondent's admission, Respondent is found Guilty of Specification No. 5.

Specification No. 6

Specification No. 6 states that Respondent while on-duty, on July 14, 2012, in Queens County, after taking DNA evidence requiring analysis at the Police Laboratory into custody, failed to prepare a Property Clerk's Invoice (PD521-141), as required.

The Assistant Department Advocate (Advocate) argued that Respondent is guilty of this specification because of his failure to bring the Property Clerk's Invoice to the lab the first time.

It is true that Respondent initially failed to prepare and bring the invoice to the lab. However, in the end, Respondent did not leave until the Property Clerk's Invoice was prepared.

Therefore, Respondent is found Not Guilty of Specification No. 6.

Specification No. 7

Specification No. 7 alleges that on July 14, 2012, in Queens County, Respondent failed to report to the Desk Officer when he left the stationhouse.

Respondent admitted that, on July 14, 2012, when he finished preparing the complaint and arrest reports, Huh was away from the desk. The officers in the area did not know where Huh went. Since there was no other supervisor working at the desk, he told the officers to tell Huh when she returned that he was taking a Department car to the lab. He then went behind the desk, took the keys for a car, and drove to the lab.

In his defense, Respondent claimed that Huh had directed him to go to the lab when he was finished preparing the paperwork. Huh also indicated that she told Respondent to go to the lab when he was finished.

However, when she gave Respondent this direction, Huh assumed that he would understand that he should check with her before he left. The procedure that Huh directed Respondent to follow, *Patrol Guide* Section 218, provides that after preparing the paperwork, the officer should give the paperwork to the desk officer to review and sign it. And as Respondent well knew, the correct procedure after preparing complaints for an arrest is to go to the desk officer. Had Respondent not been in such a rush, waited to find Huh and followed the correct procedure, his omissions would have been corrected. Then he would have saved himself an extra trip back to the precinct and to the lab and could have left earlier as he had wanted to do.

Therefore, Respondent is found Guilty of Specification No. 7.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974).

Respondent was appointed to the Department on July 1, 2004. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

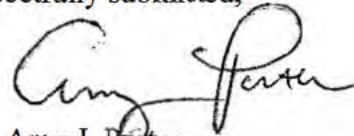
The Advocate recommended a 30 vacation day penalty with one year dismissal probation.

Respondent argued that his superiors were unfairly targeting him because they did not like him. While there was no evidence of a conspiracy, Respondent's attitude and behavior could not have endeared him to his supervisors. Certainly the misconduct described in each of the individual specifications standing alone was not significant. However, when taken together, they reflect a continual pattern by Respondent for disrespect toward his supervisors and a general lack of motivation.

In a recent case where an officer was given dismissal probation for multiple instances of misconduct, those instances involved filing deliberately false paperwork, lying about being sick and face to face uttering of obscenities toward a superior. *Case Nos. 5515/11, 5753/11, 7687/12, 9487/13* (April 8, 2014). Respondent's misconduct here was not so egregious. Respondent was also found not guilty of two Specifications.

Therefore, it is recommended that Respondent receive a lesser penalty and forfeit 30 vacation days.

Respectfully submitted,



Amy J. Porter

Assistant Deputy Commissioner – Trials



POLICE DEPARTMENT
CITY OF NEW YORK

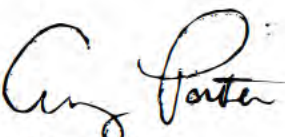
From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER STEVEN SCHMITT
TAX REGISTRY NO. 935711
DISCIPLINARY CASE NO. 2012-7794

In 2013, Respondent received a rating of 2.5 “Below Competent” on his annual performance evaluation. In 2012, Respondent received a 3.5 “Highly Competent/Competent.” In 2011, Respondent received a rating of 3.0 “Competent.”



Respondent has no prior formal disciplinary record.

For your consideration.



Amy J. Porter
Assistant Deputy Commissioner Trials